

STATE OF NEW YORK

1778--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. RAJKUMAR -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, in relation to granting members of the city's police force eligibility for retirement and pension based on previous service as traffic enforcement agents

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The administrative code of the city of New York is amended
2 by adding a new section 13-633 to read as follows:

3 § 13-633 Transfer of members of the New York city police department
4 from traffic enforcement to the police force. a. The time served as a
5 member of the city's traffic enforcement who has become a member of the
6 uniformed force of the police department of the city, whether by trans-
7 fer or as a result of a competitive examination and appointment, and who
8 is still a member of the uniformed force of the police department of the
9 city, shall be included and counted as police service as defined in
10 section 13-214 of this title in determining retirement and pension bene-
11 fits as provided in this code and the retirement and social security law
12 if such person becomes a member of a state or city retirement system
13 available to members of the police department of the city, provided,
14 however, that no person becoming a member of the uniformed force of the
15 police department of the city in the manner herein provided, shall be
16 entitled to participate in the benefits of a state or city retirement
17 system available to members of the police department of the city, unless
18 such person shall pay into such fund the total sum that such person
19 would have been required to pay in order to participate therein had such
20 person been a member of such force from the time they entered the
21 service of traffic enforcement. These provisions shall not be subject to
22 any restriction relative to transfers contained in the civil service law

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 or in the rules and regulations of the civil service commission of the
2 state, or any subdivision thereof.

3 b. Notwithstanding any other provisions of law, a member of the New
4 York city police department shall be entitled to buy back and receive
5 service credit for the period of time such member was previously
6 employed as a New York city traffic enforcement agent pursuant to subdi-
7 vision a of this section.

8 § 2. This act shall take effect immediately.